



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 15943 of 2026

Devanshu Bose

.....Petitioner(s)

Versus

Electricity Ombudsman Lucknow And 4 Other

.....Respondent(s)

Counsel for Petitioner(s)	:	Devanshu Bose
Counsel for Respondent(s)	:	Ajay Singh, Baleshwar Chaturvedi, C.S.C., Gaurav Tripathi

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. Mr. Gaurav Tripathi, learned advocate appears on behalf of respondent no.4 (the supply company). He refers to his client's counter filed on e-mode today and hard copies handed up. On query he draws attention to Electricity Supply Code (Thirteenth Amendment), 2018, notified on 10th August, 2018, particularly to clause (j) under amended Part A. He submits, there is provision for separate connection given to the individuals only after the receipt of application, as prescribed for new connection. He demonstrates from application dated 29th August, 2020 made by requisite number of residents, it was acted upon to provide prepaid meters for recording individual consumption. He then proceeds to rely on last proviso under the clause. He submits, in such a situation the licensee (his client as the supply company) can and did install a meter to act as reference meter. The proviso further says, the energy difference up to 4%/5% percent as applicable is allowed for transformation and LT losses. The proviso goes on to say, in case of energy difference for any billing cycle works out to higher than 4%/5% as the case may be, then the difference of energy beyond permissible loss limit shall be calculated and added in the consumption of common services. Here this was done.

2. Mr. Shad Azam, learned advocate holding the brief appears on behalf of respondent nos.1 and 2. Mr. Baleshwar Chaturvedi, learned advocate appears on behalf of respondent no.3 (the distribution company). Mr. Sharad Chandra Upadhyay, learned advocate, Standing Counsel appears

on behalf of State.

3. Petitioner appears in person. He insists on his contention that the charge levelled is to recover on theft of electricity. We observe that petitioner must demonstrate the theft because the negative cannot be proved. As such, petitioner has opportunity to deal with the counter and contention of the supply company, including asserting and demonstrating his allegation of theft. He must indicate the point, from where the theft of electricity is taking place. The supply company must also cause inspection and file affidavit on clear assertion that there is no theft in the premises (the residences in the gated compound). Petitioner's rejoinder, if any and the affidavit of the supply company (respondent no.4) will be accepted on adjourned date, upon advance copies exchanged.

4. List on 9th July, 2026 marked at 2.00 p.m.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

May 21, 2026

Salim